



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 26 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11623

EXPIRATION DATE: February 1, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Potash Corporation of Saskatchewan Phosphate (PCS), Aurora, North Carolina
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one time transportation of a DOT Specification 112S340W tank car, containing a partial load of a Division 2.2 material, which does not fully comply with all DOT requirements and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a), 174.67(j), and 179.100-13(a)
5. BASIS. This emergency exemption is based on the PCS' Phosphate, Aurora, North Carolina, application of January 12, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Ammonia, anhydrous, liquified	2.2	UN 1005	

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT Specification 112S340W tank car, GATX 93426, with a defective vapor line. The vapor line valves and a plug have been secured to prevent leakage during transportation.

8. SPECIAL PROVISIONS.

a. Shipment of tank car GATX 93426 is authorized on the CSX Transportation or Norfolk Southern Railroad between Aurora, North Carolina to PCS Phosphate in Savannah, Georgia, a distance of approximately 300 miles. This car is further authorized to move on accepting carriers, cleaned and purged but not fully meeting DOT specifications, from Savannah, Georgia, to the General American shops in Hearne, Texas, for final repair.

b. MARKING - Tank car GATX 93426 be marked "DOT-E 11623" in four inch letters on a contrasting background above the DOT specification number.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident such as derailment or exterior tank car damage occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

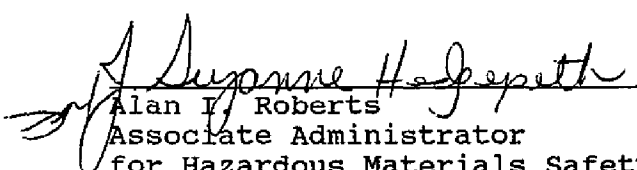
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.). In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 26 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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